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| CASE #      | CASE NAME                                                              | HEARING NAME                                                                                                 |
|-------------|------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------|
| CVPS2502104 | GARNICA VS VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION | HEARING RE: MOTION TO BE RELIEVED AS COUNSEL FOR VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION |

**Tentative Ruling:** No tentative ruling. Hearing will be conducted on Monday, August 24, 2026 at 8:30 a.m., Department PS2.

5.

| CASE #      | CASE NAME             | HEARING NAME                                                                        |
|-------------|-----------------------|-------------------------------------------------------------------------------------|
| CVPS2506635 | BAUTISTA VS CABALLERO | HEARING RE: MOTION FOR ATTORNEYS FEES BY GUILLERMINA CABALLERO, JESUS PINA BAUTISTA |

**Tentative Ruling:** Granted.

Granted in reduced but reasonable amount payable to moving Defendant by Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Genaro Bautista ("Plaintiff") alleges that on 9/14/23, he hired a licensed and armed process server, Van Wilcox, to serve an eviction notice on a tenant occupying the property that Plaintiff and his family owned. Plaintiff alleges that between September 14 and September 18, his siblings, Defendants Guillermina Caballero and Jesus Pina Bautista ("Defendants"), reported to the Sheriff's Office that Plaintiff himself was the armed individual seen on the Ring camera video footage of the property. Plaintiff asserts Defendants knew this report was false. As a result of this report, on 9/18/23, Sheriff's deputies detained and arrested Plaintiff, raid his home without consent, and held him overnight for eleven hours before releasing him on bail. Plaintiff alleges that since 10/3/23, Defendants have filed multiple false temporary restraining order (TRO) requests against him.

The complaint, filed 9/5/25, asserts: (1) intentional infliction of emotional distress (IIED); (2) malicious prosecution; (3) false arrest; (4) negligence; (5) a civil rights claim for illegal arrest; and (6) a civil rights claim for violation of privacy rights.

On 5/7/26, the court granted Defendants' anti-SLAPP motion in part, striking the 4th cause of action for negligence. Plaintiff also voluntarily dismissed the two federal civil rights claims.

Now, Defendants argue that they prevailed on their anti-SLAPP motion and seek \$14,450 in attorney fees (28.9 hours at \$500/hour), plus \$159.71 in costs. The motion alternatively identifies counsel's actual rate as \$300/hour for this case and the grand total equals \$8,829.71.

In opposition, Plaintiff argues the motion produced little practical benefit because the material causes of action remain. Plaintiff argues that the same arrest, reports, witnesses, video, and damages evidence remain at issue to be litigated. Plaintiff also challenges the requested rate and hours, asserting that certain time entries concern general client representation rather than the special motion to strike.

Attorney Fees on Anti SLAPP

Under CCP § 425.16(c)(1), “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” A prevailing defendant is only entitled to reasonable attorneys’ fees and costs pertaining to the anti-SLAPP motion. (*S.B. Beach Properties v. Berti* (2006) 39 Cal.4th 374, 381.) The trial court is not bound by the amount sought by a prevailing defendant and has discretion to award them a lesser sum. (*Robertson v. Rodriguez* (1995) 36 Cal.App.4th 347, 362.)

The matter of reasonableness of a party’s attorney’s fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1987) 190 Cal.App.3d 1051, 1062.) Lodestar is the objective starting point to determine if attorney’s fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what is a reasonable rate and number of hours expended on a case. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Here, the court previously determined that Defendants are prevailing parties because the anti-SLAPP motion eliminated the 4th cause of action (negligence) and prompted Plaintiff’s voluntary dismissal of the two federal civil rights claims. Nevertheless, the motion did not eliminate the principal allegations regarding the 3 remaining claims: (1) intentional infliction of emotional distress, (2) malicious prosecution, and (3) false arrest. A fee award following partial success should reflect “whether the same factual allegations remain to be litigated, whether discovery and motion practice have been narrowed, and the extent to which future litigation expenses and strategy were impacted.” (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 345.) Here, a 50% reduction appears to appropriately reflect Defendants’ limited success.

The evidence does not adequately establish the requested \$500 hourly rate. Defense counsel himself declares that he charged \$300 per hour for this case. (Cravens Decl., ¶ 2.) He acknowledged that this was his first anti-SLAPP motion. (*Id.*, ¶ 3.) He offered only a general statement concerning the “typical billing rate” for other fee motions. (*Id.*, ¶ 2.) This is not a sufficient showing. The court finds \$300 per hour reasonable.

As to the time billed, the billing records include 24.4 hours incurred through preparation of the fee motion. Counsel also includes 4.5 anticipated hours for a reply, tentative ruling, and hearing. Since the record does not establish that the anticipated work occurred, the court cannot rely on the anticipated hours.

Counsel also admits that his hours are “elevated somewhat due to research.” (*Id.*, ¶ 3.) Inefficient or duplicative efforts is not compensable, the court excludes the 3-hour “Research SLAPP Motion” time entry for 1/7/26. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132). The court also excludes the 2-hour block-billed complaint review/initial consultation entry for 11/20/25, which does not adequately separate compensable motion work and general client consultation.

After deducting 5 hours (3+2 hours) from the 24.4 actual hours claimed, 19.4 compensable hours remain. Therefore, the resulting lodestar at \$300/hour is \$5,820.

### Costs

\$141.35 is permitted as filing costs, but excluded is the anticipated \$18.36 reply filing cost.